

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF QUEENS

----- X
JOHN MORNING,

Plaintiff,

-against-

THE CITY OF NEW YORK, DETECTIVE JHOAN
LOZANO, Tax No. 964624, DETECTIVE CHRISTOPHER
CAPATANO, Shield No. 804, SERGEANT BRYAN
CULLEN, Tax No. 945363, POLICE OFFICER DANIEL
SCALCIONE, Tax No. 955453, DETECTIVE DANIEL
LEBOFF, Tax No. 958803, DETECTIVE CHRISTOPHER
SANABRIA, Tax No. 958048, DETECTIVE DANIEL
CONNORS, Tax No. 9525612, and POLICE OFFICERS
JOHN DOES #s 1-10,

Defendants.
----- X

SUMMONS

Index No.:

The Basis of Venue is:
Location of Incident

Plaintiff designates Queens
County as the place of trial.

To the above-named Defendants:

You are hereby summoned to answer the complaint in this action, and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorneys within twenty days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

DATED: New York, New York
April 13, 2023

Yours, etc.

David Hazan

JACOBS & HAZAN, PLLC.
DAVID M. HAZAN, ESQ.
Attorney for Plaintiff
30 Vesey Street, 4th Floor
New York, New York 10007
(212) 577-2690

TO: THE CITY OF NEW YORK, NYC Office of the Corporation Counsel, 100 Church Street,
New York, New York 10007
DETECTIVE JHOAN LOZANO, Tax No. 964624, Gun Violence Suppression Division,
Zone 1
DETECTIVE CHRISTOPHER CAPATANO, Shield No. 804, Gun Violence Suppression
Division, Zone 1
SERGEANT BRYAN CULLEN, Tax No. 945363, Criminal Intelligence Section
POLICE OFFICER DANIEL SCALCIONE, Tax No. 955453, 113th Precinct,
DETECTIVE DANIEL LEBOFF, Tax No. 958803, Gun Violence Suppression Division,
Zone 1
DETECTIVE CHRISTOPHER SANABRIA, Tax No. 958048, Gun Violence Suppression
Division, Zone 1
DETECTIVE DANIEL CONNORS, Tax No. 9525612, 113th Precinct Detective Squad

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF QUEENS

----- X

JOHN MORNING,

Plaintiff,

-against-

INDEX NO.:

VERIFIED COMPLAINT

THE CITY OF NEW YORK, DETECTIVE JHOAN LOZANO, Tax No. 964624, DETECTIVE CHRISTOPHER CAPATANO, Shield No. 804, SERGEANT BRYAN CULLEN, Tax No. 945363, POLICE OFFICER DANIEL SCALCIONE, Tax No. 955453, DETECTIVE DANIEL LEBOFF, Tax No. 958803, DETECTIVE CHRISTOPHER SANABRIA, Tax No. 958048, DETECTIVE DANIEL CONNORS, Tax No. 9525612, and POLICE OFFICERS JOHN DOES #s 1-10,

JURY TRIAL DEMANDED

Defendants.

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Plaintiff JOHN MORNING, by his attorneys, Jacobs & Hazan, PLLC, as and for his Verified Complaint herein, alleges upon information and belief as follows:

PRELIMINARY STATEMENT

This is a civil rights action to recover money damages arising out of defendants' violation of plaintiff's rights as secured by the Civil Rights Act, 42 U.S.C. Sections 1983 and 1988, and of rights secured by the First, Fourth, Fifth and Fourteenth Amendments to the United States Constitution, and the common law and the laws of the State of New York. Plaintiff alleges that on or about April 13, 2020 at approximately 4:30 pm plaintiff was a lawful passenger in the third row of a minivan driven by an individual named James Morton in the vicinity of the southeast corner of Inwood Street and 110th Avenue, Queens, NY, at which time the individually named defendant police officers unlawfully stopped the vehicle, without reasonable suspicion, probable cause, or any legal justification. The only people in the vehicle other than plaintiff were the driver and his girlfriend Alexis Fasoli, who was seated in the front passenger seat. When the officers approached the vehicle, they falsely claimed they smelled marijuana and they ordered everyone to exit the vehicle. Plaintiff complied with officers' order and exited the vehicle. The officers proceeded to unlawfully search plaintiff without probable cause or legal justification and the officers did not recover any illegal drugs, weapons, or contraband from plaintiff's person or from his possession custody or control. The officers unlawfully searched a purse that was left inside of the vehicle on the front passenger seat which belonged to Alexis Fasoli. Defendants allege they recovered a firearm from Alexis Fasoli's purse. Alexis Fasoli immediately admitted that the purse and the

firearm belonged to her, and she accurately described the type of gun that the officers recovered from her purse to the officers, even though the officers did not show her the firearm. Later that evening, Alexis Fasoli provided a detailed recorded statement to the defendants about where she purchased the firearm and why she had it in her possession. The officers did not possess probable cause to believe that plaintiff had possession custody or control over the firearm or that he violated the law in any way. The officers unlawfully handcuffed and falsely arrested plaintiff without probable cause to believe he committed a crime and transported him against his will to the 113th precinct, where he was unlawfully searched, fingerprinted, photographed, interrogated, and detained in a filthy holding cell for many hours. The officers allege that while they were conducting an inventory search of the vehicle at the precinct, they recovered another firearm from the vicinity of where the driver was seated. Alexis Fasoli admitted to the defendants that the second firearm belonged to her boyfriend, the driver of the vehicle, James Morton. Nobody ever alleged or provided evidence that in any way that supported a proposition that plaintiff had any knowledge that there were firearms in the vehicle. The officers lacked probable cause to believe plaintiff had possession custody or control over the firearm allegedly recovered during the inventory search. Nevertheless, the defendant officers charged plaintiff and the other occupants of the vehicle with criminal possession of both firearms that were recovered. Plaintiff was transported to Queens County Central Booking on April 14, 2020, whereat the unlawful detention continued until he was arraigned in Queens County Criminal Court on April 15, 2020. Plaintiff was charged with crimes he did not commit and that the police officers lacked probable cause to accuse him of committing, including but not limited to Criminal Possession of A Weapon. The charges were based upon false misleading and incomplete evidence provided to the District Attorney's office by the defendants. The court set bail at arraignment and plaintiff was initially unable to post bail. Therefore, plaintiff was remanded into New York City Department of Corrections custody and detained on Riker's Island until July 24, 2020, and also from approximately February 8, 2022 through May 5, 2022. Plaintiff appeared in court on approximately 31 occasions and appeared for hearings and trial, which lasted several days. Plaintiff was acquitted by a jury of all charges at trial on November 4, 2022, and all charges were dismissed and sealed in their entirety. Alexis Fasoli pled guilty to possession of the firearm and entered into a plea deal to cooperate with the DA's Office to testify against James Morton at trial. James Morton was convicted of possession of the firearm at trial. No evidence was ever presented that remotely suggested that plaintiff unlawfully possessed a firearm or had any knowledge that the firearms were in the vehicle, and he was acquitted of all charges brought against him by the jury. The officers that did not physically touch or interact with plaintiff but observed their fellow officers violating plaintiff's rights and failed to prevent and/or stop their fellow officers from violating plaintiff's rights are liable to plaintiff for their failure to intervene.

PARTIES

1. Plaintiff JOHN MORNING is a resident of the state of New Jersey.
2. Defendant DETECTIVE JHOAN LOZANO, Tax No. 964624, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

3. Defendant DETECTIVE JHOAN LOZANO, Tax No. 964624, was at all times relevant herein, was assigned to the to the 113th Precinct and is presently assigned to Gun Violence Suppression Division, Zone 1.

4. Defendant DETECTIVE JHOAN LOZANO, Tax No. 964624, is being sued in his individual and official capacity.

5. Defendant DETECTIVE CHRISTOPHER CAPATANO, Shield No. 804, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

6. Defendant DETECTIVE CHRISTOPHER CAPATANO, Shield No. 804, was at all times relevant herein, was assigned to the to the 113th Precinct and is presently assigned to Gun Violence Suppression Division, Zone 1.

7. Defendant DETECTIVE CHRISTOPHER CAPATANO, Shield No. 804, is being sued in his individual and official capacity.

8. Defendant SERGEANT BRYAN CULLEN, Tax No. 945363, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

9. Defendant SERGEANT BRYAN CULLEN, Tax No. 945363, was at all times relevant herein, was assigned to the to the 113th Precinct and is presently assigned to Criminal Intelligence Section.

10. Defendant SERGEANT BRYAN CULLEN, Tax No. 945363, is being sued in his individual and official capacity.

11. Defendant POLICE OFFICER DANIEL SCALCIONE, Tax No. 955453, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

12. Defendant POLICE OFFICER DANIEL SCALCIONE, Tax No. 955453, was at all times relevant herein, was assigned to the to the 113th Precinct.

13. Defendant POLICE OFFICER DANIEL SCALCIONE, Tax No. 955453, is being sued in his individual and official capacity.

14. Defendant DETECTIVE DANIEL LEBOFF, Tax No. 958803, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

15. Defendant DETECTIVE DANIEL LEBOFF, Tax No. 958803, was at all times relevant herein, was assigned to the to the 113th Precinct and is presently assigned to Gun Violence Suppression Division, Zone 1.

16. Defendant DETECTIVE DANIEL LEBOFF, Tax No. 958803, is being sued in his individual and official capacity.

17. Defendant DETECTIVE CHRISTOPHER SANABRIA, Tax No. 958048, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

18. Defendant DETECTIVE CHRISTOPHER SANABRIA, Tax No. 958048, was at all times relevant herein, was assigned to the to the 113th Precinct and is presently assigned to Gun Violence Suppression Division, Zone 1.

19. Defendant DETECTIVE CHRISTOPHER SANABRIA, Tax No. 958048, is being sued in his individual and official capacity.

20. Defendant DETECTIVE DANIEL CONNORS, Tax No. 9525612, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

21. Defendant DETECTIVE DANIEL CONNORS, Tax No. 9525612, was at all times relevant herein, assigned to 113th Precinct Detective Squad.

22. Defendant DETECTIVE DANIEL CONNORS, Tax No. 9525612, is being sued in his individual and official capacity.

23. Defendants New York City Police Officers John Does #s 1-10 are and were at all times relevant herein officers, employees, and agents of the New York City Police Department.

24. Defendants New York City Police Officers John Does #s 1-10 are being sued in their individual and official capacities.

25. Defendant City of New York is a municipal entity created and authorized under the laws of the State of New York. It is authorized by law to maintain a police department, which acts as its agent in the area of law enforcement and for which it is ultimately responsible. The defendant City of New York assumes the risks incidental to the maintenance of a police force and the employment of police officers as said risks attach to the public consumers of the services provided by the New York City Police Department.

26. Plaintiff in furtherance of his causes of action brought pursuant to New York State law filed a Notice of Claim against the CITY OF NEW YORK, in compliance with the Municipal Law Section 50 and testified at a hearing conducted pursuant to Gen. Mun. Law Section 50-h

27. More than thirty (30) days have elapsed since service of said Notice of Claim was filed and THE CITY OF NEW YORK has failed to pay or adjust the claim.

28. This action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving intentional actions, as well as the defendant, and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

29. Plaintiff has sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

STATEMENT OF FACTS

30. On or about or about April 13, 2020 at approximately 4:30 pm plaintiff was a lawful passenger in the third row of a minivan driven by an individual named James Morton in the vicinity of Inwood Street and 110th Avenue, Queens, New York, at which time the individually named defendant police officers unlawfully stopped the vehicle, without reasonable suspicion, probable cause, or any legal justification.

31. At no time did the driver of the vehicle commit a traffic offense, and all occupants of the vehicle had their seatbelts fastened.

32. The vehicle was a rental vehicle and complied with all of the laws of the State of New York.

33. The only people in the vehicle with plaintiff were the driver and his girlfriend Alexis Fasoli, who was seated in the front passenger seat.

34. When the defendant officers approached the vehicle, they falsely claimed they smelled marijuana and they ordered everyone to exit the vehicle.

35. Plaintiff complied with officers' unlawful order and exited the vehicle.

36. The defendant officers proceeded to unlawfully search plaintiff without probable cause or legal justification and the officers did not recover any illegal drugs, weapons, or contraband from plaintiff's person or from his possession custody or control pursuant to the search.

37. The defendant officers unlawfully searched a purse that was left inside of the vehicle on the front passenger seat, which belonged to Alexis Fasoli.

38. Defendants allege they recovered a firearm from Alexis Fasoli's purse.

39. Alexis Fasoli immediately admitted to defendants that the purse and the firearm belonged to her.

40. Alexis Fasoli accurately described the type of firearm that the officers recovered from her purse to the officers even though the officers did not show her the firearm.

41. Later that evening, at the police precinct, Alexis Fasoli provided defendants with a detailed recorded statement describing where she purchased the firearm and why she had it in her possession.

42. The defendant police officers did not possess probable cause to believe that plaintiff had possession custody or control over the firearm or that he violated the law in any way.

43. The defendant police officers unlawfully handcuffed and falsely arrested plaintiff without probable cause to believe he committed a crime and transported him against his will to the 113th precinct, where he was unlawfully searched, fingerprinted, photographed, interrogated, and detained in a filthy holding cell for many hours.

44. The officers allege that while they were conducting an inventory search of the vehicle at the precinct, they recovered another firearm from the floorboard of the vehicle in the vicinity of where the driver was seated.

45. Alexis Fasoli admitted to the defendant police officers that the second firearm belonged to her boyfriend, the driver of the vehicle, James Morton.

46. Furthermore, she told the defendants that when they were pulled over James Morton reminded Alexis Fasoli that they had firearms in the vehicle, and he told her to take responsibility for them.

47. Nobody ever alleged or provided evidence that in any way supported a proposition that plaintiff had any knowledge that there were firearms in the vehicle.

48. The officers lacked probable cause to believe plaintiff had possession custody or control over the firearm allegedly recovered during the inventory search.

49. Nevertheless, the defendant officers charged plaintiff and the other occupants of the vehicle with criminal possession of both firearms that were recovered from the vehicle.

50. Plaintiff was transported to Queens Central Booking on April 14, 2020, whereat the unlawful detention continued until he was arraigned in Queens County Criminal Court on April 15, 2020.

51. Plaintiff was charged with crimes he did not commit and that the police officers lacked probable cause to accuse him of committing, including but not limited to several counts of Criminal Possession of A Weapon.

52. The charges were based upon the false misleading and incomplete evidence provided to the District Attorney's Office by the defendants.

53. The court set bail at arraignment and plaintiff was initially unable to post bail. Therefore, plaintiff was remanded into New York City Department of Correction custody and

detained on Riker's Island until July 24, 2020, and also from approximately February 8, 2022 through May 5, 2022.

54. Plaintiff was unlawfully detained in inhumane conditions at Riker's Island during the height of the COVID pandemic, and before vaccinations were available.

55. A majority of Correction Officers were not reporting to work at Riker's Island during the time period plaintiff was detained and therefore, there was almost zero oversight of the prisoners.

56. Most of the housing areas during that time period were controlled by gangs and were extremely dangerous.

57. Plaintiff lost approximately \$20,000 in money he used to post bail.

58. Plaintiff appeared in court on approximately 31 occasions and appeared for hearings and a trial that lasted for several days.

59. At trial, plaintiff's name was rarely referenced because there was absolutely zero evidence presented against him.

60. Plaintiff was acquitted by a jury after trial on November 4, 2022, and all charges were dismissed and sealed in their entirety.

61. Alexis Fasoli pled guilty to possession of the firearm in her purse, and she entered into a plea deal to cooperate with the DA's Office, and she testified against James Morton at trial.

62. James Morton was convicted of possession of the firearm at trial.

63. No evidence was ever presented that remotely suggested that plaintiff unlawfully possessed a firearm or had any knowledge that the firearms were in the vehicle, and he was acquitted of all charges brought against him by the jury.

64. The officers that did not physically touch or interact with plaintiff but observed their fellow officers violating plaintiff's rights and failed to prevent and/or stop their fellow officers from violating plaintiff's rights are liable to plaintiff for their failure to intervene.

65. At no time relevant herein did plaintiff commit a crime, nor did the officers have probable cause to accuse him of committing a crime.

66. The defendant officers provided the DA's Office with false, misleading, and incomplete evidence to support their purported basis for arresting plaintiff and charging him with crimes.

67. Plaintiff was maliciously prosecuted without probable cause, based upon the false, misleading, and incomplete allegations made against him by the police officers to the DA's Office.

68. At no time relevant herein did plaintiff violate the law or commit a crime, nor did the officers possess objective facts to establish probable cause to establish probable cause to believe he committed a crime.

69. Defendants fabricated the allegations made against plaintiff that were sworn to under the penalty of perjury in the criminal court complain.\

70. The criminal proceedings terminated in plaintiff's favor.

71. Defendants' unlawful and unconstitutional conduct caused plaintiff to endure being arrested for crimes he did not commit and detained in inhumane Conditions at Riker's Island for approximately 6 months.

72. Moreover, plaintiff suffered extreme emotional distress from having to address the false charges brought against him in the criminal prosecution.

73. The defendant officers' false, misleading, and incomplete allegations against plaintiff formed the basis for a criminal prosecution being initiated against him, without probable cause.

74. Those officers that did not physically touch plaintiff but observed their fellow officers violating plaintiff's rights under New York State law and the Constitution but neglected to intervene to stop their fellow officers from continuing to violate plaintiff's rights under New York State law and the United States Constitution are liable to plaintiff for their failure to intervene.

75. Plaintiff paid a private criminal defense attorney \$40,000 to represent him in the criminal prosecution.

76. Additionally, plaintiff was fired from his job as a mechanic with Nut Partners., Inc. because he could not report to work while he was detained on Riker's Island, and he lost approximately \$43,225 in income during the pendency of the criminal prosecution.

77. The unlawful stop, question, frisk, search, false arrest and false imprisonment, malicious prosecution, excessive force, and denial of due process/ right to a fair trial of plaintiff by the individually named defendants caused plaintiff to sustain physical, psychological, economic, and emotional trauma.

FIRST CAUSE OF ACTION

Violation of Plaintiff's Fourth and Fourteenth Amendment Rights

78. The plaintiff repeats reiterates and realleges each and every allegation contained in paragraphs marked 1 through 77 with the same force and effect as if more fully set forth at length herein.

79. The individually named police officer defendants while acting in concert and within the scope of their authority, caused plaintiff to be unlawfully stopped, questioned, frisked, searched, seized, falsely arrested, falsely imprisoned, and maliciously prosecuted without probable cause in violation of plaintiff's right to be free of an unreasonable seizure and under the Fourth Amendment to the Constitution of the United States and to be free of a deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.

SECOND CAUSE OF ACTION

False Arrest and False Imprisonment

80. The plaintiff repeats reiterates and realleges each and every allegation contained in paragraphs marked 1 through 79 with the same force and effect as if more fully set forth at length herein.

81. The acts and conduct of the defendants constitute false arrest and false imprisonment under the laws of the State of New York. Defendants intended to confine plaintiff and, in fact, confined plaintiff, and plaintiff was conscious of the confinement. In addition, plaintiff did not consent to the confinement and the confinement was not otherwise privileged.

82. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York and the United States Constitution.

83. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

84. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to physical, economic, emotional, and psychological injuries.

THIRD CAUSE OF ACTION

Unlawful Stop, Question and Frisk

85. The plaintiff repeats reiterates and realleges each and every allegation contained in paragraphs marked 1 through 84 with the same force and effect as if more fully set forth at length herein.

86. The illegal approach, pursuit, stop, question, and frisk employed by defendants herein terminated plaintiff's freedom of movement through means intentionally applied.

87. The conduct of defendants in stopping, questioning, frisking, and searching, plaintiff was performed under color of law and without any reasonable suspicion of criminality or other constitutionally required grounds.

88. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York.

89. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

90. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to physical, economic, emotional, and psychological injuries.

FOURTH CAUSE OF ACTION

Unlawful Search

91. The plaintiff repeats reiterates and realleges each and every allegation contained in paragraphs marked 1 through 90 with the same force and effect as if more fully set forth at length herein.

92. The illegal approach, pursuit, stop and search inside plaintiff's pockets, inside of the waistband of his pants and underneath his clothing employed by defendants herein, terminated plaintiff's freedom of movement through means intentionally applied.

93. Defendants lacked probable cause to search plaintiff.

94. As a direct and proximate result of such acts, defendants deprived plaintiff of her rights under the laws of the State of New York.

95. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

96. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

FIFTH CAUSE OF ACTION

Malicious Prosecution

97. Plaintiff repeats and realleges paragraphs 1 through 96 as if fully set forth herein.

98. The acts and conduct of the defendants constitute malicious prosecution under the laws of the United States Constitution, State of New York, and New York State common law.

99. Defendants commenced and continued a criminal proceeding against plaintiff.

100. There was actual malice and an absence of probable cause for the criminal proceeding against plaintiff and for each of the charges for which he was prosecuted.

101. The prosecution and criminal proceedings terminated in plaintiff's favor on the aforementioned date.

102. Plaintiff was subjected to a post-arraignment deprivation of liberty sufficient to implicate plaintiff's Fourth Amendment rights.

103. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

104. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

SIXTH CAUSE OF ACTION

Violation of Plaintiff's Fifth Amendment and Fourteenth

Amendment Rights

Denial of Due Process/ Right to a Fair Trial

105. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs numbered 1 through 104 with the same force and effect as if fully set forth herein.

106. Defendants, individually and collectively, manufactured and/or withheld false evidence and forwarded this false evidence to prosecutors in the Queens County District Attorney's Office.

107. Defendants filled out false and misleading police reports and a criminal court complaint and forwarded them to the Queens County Criminal Court.

108. In withholding/creating false evidence against plaintiff, and in providing/withholding information with respect thereto, defendants violated plaintiff's constitutional right to due process/ a fair trial under the New York State Constitution and under the Due Process Clause of the Fifth and Fourteenth Amendments of the United States Constitution.

109. As a result of the foregoing, plaintiff, sustained, inter alia, loss of liberty, emotional distress, embarrassment and humiliation, lost earnings, and deprivation of his constitutional rights.

110. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

SEVENTH CAUSE OF ACTION

Violation of Plaintiff's Fourth And Fourteenth Amendment

Rights

111. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 110 with the same force and effect as if more fully set forth at length herein.

112. The use of excessive force by defendants by affixing the handcuffs on plaintiff's wrists in an objectively unreasonably tight manner and refusing to loosen the handcuffs when asked was an objectively unreasonable physical seizure of plaintiff in violation of his rights under the Fourth and Fourteenth Amendments to the Constitution of the United States and to be free of a deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.

113. Defendants were at all times agents, servants, and employees acting within the scope of his employment by the City of New York and the New York City Police Department, which are therefore responsible for his conduct.

EIGHTH CAUSE OF ACTION

Failure to Intervene

114. The plaintiff repeats reiterates and realleges each and every allegation contained in paragraphs marked 1 through 113 with the same force and effect as if more fully set forth at length herein.

115. Defendants had an affirmative duty to intervene on behalf of plaintiff, whose constitutional rights were being violated in their presence by other officers.

116. Defendants failed to intervene to prevent the unlawful conduct described herein.

117. As a result of the foregoing, plaintiff's liberty was restricted for an extended period of time, he was put in fear of his safety, and he was humiliated and subject to other physical constraints.

118. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

NINTH CAUSE OF ACTION

Negligent Hiring, Retention, Training and Supervision

119. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 118 with the same force and effect as if more fully set forth at length herein.

120. The City of New York and its employees, servants and/or agents acting within the scope of their employment did negligently hire, retain, train, and supervise defendants, individuals who were unfit for the performance of police duties on the aforementioned dates at the aforementioned locations.

TENTH CAUSE OF ACTION

Negligence

121. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 120 with the same force and effect as if more fully set forth at length herein.

122. Defendants owed a duty of care to plaintiff.

123. Defendants breached that duty of care by unlawfully stopping, questioning, frisking, falsely arresting, illegally searching, maliciously prosecuting, assaulting, and battering plaintiff.

124. As a direct and proximate cause of this unlawful conduct, plaintiff sustained the damages hereinbefore alleged.

125. All of the foregoing occurred without any fault or provocation by plaintiff.

126. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

ELEVENTH CAUSE OF ACTION

Negligent Infliction of Emotional Distress

127. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 126 with the same force and effect as if more fully set forth at length herein.

128. By the actions described herein, defendants, each acting individually and in concert with each other, engaged in extreme and outrageous conduct, conduct utterly intolerable in a civilized community, which negligently caused severe emotional distress to plaintiff. The acts and conduct of the defendants were the direct and proximate cause of injury and damage to plaintiff and violated plaintiff's statutory and common law rights as guaranteed plaintiff by the laws and Constitution of the State of New York.

129. As a result of the foregoing, plaintiff was deprived of liberty and sustained great emotional injuries.

130. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

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JURY DEMAND

131. Plaintiff hereby demands trial by jury of all issues properly triable thereby.

PRAYER FOR RELIEF

WHEREFORE, plaintiff JOHN MORNING demands judgment against the defendants on each cause of action in amounts to be determined upon the trial of this action which exceeds the jurisdiction of lower courts, inclusive of punitive damages and attorneys' fees inclusive of costs and disbursements of this action, interest, and such other relief as is appropriate under the law. That the plaintiff recovers the cost of the suit herein, including reasonable attorney's fees pursuant to 42 U.S.C. § 1988.

Dated: New York, New York
April 13, 2023

By:

David Hazan

DAVID M. HAZAN
JACOBS & HAZAN, PLLC
Attorneys for Plaintiff
30 Vesey Street, 4th Floor
New York, NY 10007
(212) 577-2690

ATTORNEY'S VERIFICATION

DAVID M. HAZAN, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am a partner of the law firm of **JACOBS & HAZAN, PLLC**, I have read the annexed **VERIFIED COMPLAINT** and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files. The reason this verification is made by me and not Plaintiff is because plaintiff does not reside in the county wherein, I maintain my office.

DATED: New York, New York
April 13, 2023

David Hazan

DAVID M. HAZAN